

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY  
MARTINEZ, CA  
DEPARTMENT 16  
JUDICIAL OFFICER: HON. BENJAMIN T REYES II  
HEARING DATE: 07/01/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULINGS  
IN DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 ([Dept16@contracosta.courts.ca.gov](mailto:Dept16@contracosta.courts.ca.gov)) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why.** Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

**ID: 161 950 4895**

**Password: 812674**

**Courtroom Clerk's Session**

**1. 9:00 AM CASE NUMBER: C25-03586**  
**CASE NAME: ED PENNING VS. FAIRWAY INDEPENDENT MORTGAGE CORPORATION**  
**\*CASE MANAGEMENT CONFERENCE**  
**FILED BY: PENNING, ED**  
**\*TENTATIVE RULING:\***

This Case Management Conference (CMC) trails the hearing for Line 8 (Demurrer). If the tentative ruling for Line 8 is not contested, this CMC is continued to October 30, 2026 at 8:30 in Department 16.

**Law & Motion**

**Summary**

This tentative ruling applies to **Lines 2 and 3.** Petitioner Zila Alonso Banuelos' ("Petitioner") Petitions for Approval of Compromise of Minors Kiara Miramontes (DOB 9/29/2012) and Andre Miramontes (DOB

4/27/2020) (“Minors”) Claims are **granted**, as set forth below. No appearance is required at the hearing on July 1, 2026, provided that Counsel complies with the Court’s orders.

### **Background**

On April 1, 2026 Petitioner, who is the parent and guardian *ad litem* for both Minors filed the Petition through counsel, Law Offices of Jesse J. Chrisp, to compromise the claim that Minors had against Defendant Bertha Adin related to an accident that occurred on February 8, 2021 in Walnut Creek, CA. In that accident, Minor Andre did not sustain injuries. Minor Kiara sustained injuries resulting in abdominal pain and anxiety. Both were seen at John Muir Hospital. Kiara also had a follow-up visit with Stanford Children Health services. Petitioner represents that Minors have fully recovered and there are no permanent injuries. Defendant offered settlement as follows for each Minor:

Kiara

Andre

|                                      |                                      |
|--------------------------------------|--------------------------------------|
| 1. Gross Settlement: \$10,000        | Gross Settlement: \$7,500            |
| a. Medical Expenses: (\$357.02)      | Medical Expenses: (\$299.48)         |
| b. Attorney’s Fees (\$2,500)         | Attorney’s Fees (\$1,875)            |
| c. Expenses (\$1,244.71)             | Expenses (\$1,210.88)                |
| Total Expenses (a+b+c): (\$4,101.73) | Total Expenses (a+b+c): (\$3,385.36) |
| 2. Balance: \$5,898.27               | Balance: \$4,114.64                  |

### **Analyses**

A Petition for Minor’s Compromise is a mandatory legal procedure in California required to settle any legal claim or lawsuit belonging to a minor child. Under state law, minors lack the legal capacity to sign binding contracts or settlement releases, meaning court approval is required to finalize the settlement and secure the proceeds.

California Probate Code §§ 3500–3613 provides the primary framework for the procedure and disposition of settlement funds. Probate Code Section 3500 grants a parent or guardian the authority to compromise a minor's claim before a lawsuit is filed. Probate Code Sections 3600–3613 regulate how the court must distribute and protect the settlement proceeds. If applicable, California Code of Civil Procedure (CCP) §§ 372–376 governs minors who are already active parties in a pending civil lawsuit. CCP § 372 mandates that a minor must appear via a Guardian Ad Litem (GAL) or a guardian of the estate to execute a compromise.

Lastly, California Rules of Court (CRC), Rules 7.950–7.955: Outlines specific pleading rules, disclosure mandates, attorney fee structures, and the protocols for placing funds into blocked bank account. This Court is required to review the Petition for Approval of Compromise of Claim or Action

### **Ruling**

1. After careful examination of the Petitions, attached documents and proposed orders, the Court finds good cause to approve both Petitions. Accordingly, the Petitions are granted. The Court will execute the Proposed Order Approving Compromise of Minors Claims and the Proposed Order to Deposit Funds into a Blocked Account lodged by Counsel on April 1, 2026.
2. The Court orders Counsel to secure the Bank's signature on Form MC-356 (Receipt and Acknowledgment of Order for the Deposit of Money into a Blocked Account). Counsel or petitioner must file this signed receipt back with the court within thirty (30) days to prove the funds were deposited in blocked accounts.
3. No appearance is required on July 1, 2026.

**3. 9:00 AM CASE NUMBER: C22-01162**  
**CASE NAME: ANTONIO SAUCEDO VS. BERTHA ADIN**  
**\*HEARING ON MINOR'S COMPROMISE AS TO ANDRE MIRAMONTES**  
**FILED BY: BANUELOS, ZILA ALONSO**  
**\*TENTATIVE RULING:\***

See Line 2.

**4. 9:00 AM CASE NUMBER: C23-02575**  
**CASE NAME: MATTHEW ANDRADE VS. CHRIS PETLOCK**  
**HEARING ON SUMMARY MOTION FILING PARTIES: DEFENDANTS PLEASANT HILL RECREATION & PARK DISTRICT AND CHRIS PETLOCK**  
**FILED BY:**  
**\*TENTATIVE RULING:\***

Before the Court is Defendant Pleasant Hill Recreation & Park District and Defendant Chris Petlock's Motion for Summary Judgment or in the Alternative Summary Adjudication. The Motion relates to Plaintiff Matthew Andrade's Second Amended Complaint for (1) discrimination based on age; (2) failure to provide reasonable accommodations; (3) discrimination based on disability; (4) work environment harassment; (5) failure to prevent harassment, discrimination, and retaliation; (6) retaliation; and (7) wrongful termination. The Court previously sustained Defendants' demurrer to the wrongful termination claim without leave to amend.

For the following reasons, the Motion is **granted-in-part** and **denied-in-part**. The Motion is **granted** with respect to Plaintiff's claims for (1) age discrimination and (4) workplace harassment. The Motion is **denied** with respect to Plaintiff's claims for (2) failure to accommodate, (3) disability discrimination, (5) failure to prevent, and (6) retaliation.

### **Legal Standard**

Code of Civil Procedure ("CCP") §§ 437c(c) provides, in relevant part:

The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.

Section 437c(p)(1) provides:

A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid.*; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) The scope of the initial burden is defined by the pleadings. (See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal. App. 3d 1, 18.)

### **Analysis**

This is an employment action. Plaintiff alleges several violations of FEHA in connection with his employment with Defendant Pleasant Hill Recreation and Park District.

#### **1. Age Discrimination (Gov. Code § 12940)**

Defendants argue that the evidence does not support Plaintiff's allegations of scheduling abuse and he cannot therefore make out a *prima facie* case of age discrimination under FEHA.

Plaintiff alleges in his Second Amended Complaint that "Pleasant Hill has a common scheme in place to phase out its more seasoned and older blue-collar employees by scheduling them for the most difficult and taxing shifts—namely, the night shifts. The story is no different for Mr. Andrade who remains one of the highest paid blue-collar workers at Pleasant Hill." The SAC further alleges that around the time Plaintiff turned 40 "Pleasant Hill specifically targeted Mr. Andrade, scheduling him for the most difficult shifts." (SAC at para 52.)

"In order to make out a *prima facie* case of age discrimination under FEHA, a plaintiff must present evidence that the plaintiff (1) is over the age of 40; (2) suffered an adverse employment action; (3) was performing satisfactorily at the time of the adverse action; and (4) suffered the adverse action under circumstances that give rise to an inference of unlawful discrimination, i.e., evidence that the plaintiff was replaced by someone significantly younger than the plaintiff." (*Sandell v. Taylor-Listug, Inc.* (2010) 188 Cal. App. 4th 297, 321.) "An employee alleging age discrimination must ultimately prove that the adverse employment action taken was based on his or her age." (*Hersant v. Department of Social Services* (1997) 57 Cal.App.4th 997, 1002,) "The burden shifting system requires the employee first establish a prima facie case of age discrimination. If the employee does so, the employer is required to offer a legitimate non-age-based reason for the adverse employment action.

If it does not, then the employee prevails. [Citations.]” (*Ibid.*) The general requirement that the employee offer circumstantial evidence such that a reasonable inference of age discrimination arises is not an onerous one. (*Id.* at pp. 1002-1003.)

Defendants focus on the second element, arguing both that Plaintiff did not suffer an adverse employment action in the form of scheduling abuse and also that assignments to large events and night shifts are not an “adverse employment action” within the meaning of FEHA.

With respect to scheduling, Defendant adduced evidence that Plaintiff was scheduled for fewer night shifts following his 40th birthday (51.4% of his shifts ended after 10pm after his birthday compared to 65.2% of shifts prior to his birthday). (Def. Exhs. C, D, and J.) However, Plaintiff argues that this is based on incomplete data and presented evidence that Plaintiff’s schedule after turning 40 was 64% night shifts. (Plt. Exh C-1.) On reply, Defendant argues that Plaintiff mischaracterizes this evidence as Plaintiff’s calculation includes shifts ending at or after 8 pm (in contradiction with Plaintiff’s testimony that he defined “night shift” as outside the hours of 6am and 10pm). As a consequence, Plaintiff has not materially disputed that fewer of his shifts ended after 10 pm following his 40th birthday. (The Court notes that Plaintiff has objected to Defendants’ calculations and has overruled those objections.)

Defendants also argue that Andrade’s regular assignment to large events and night shifts does not constitute adverse employment action. (MSJ at 11: 12-18 [citing *Bailey v. S.F. Dist. Attorney’s Office* (2024) 16 Cal. 5th 611, 637; *Akers v. Cty. of San Diego* (2002) 95 Cal. App. 4th 1441, 1455; and *Malais v. L.A. City Fire Dep’t* (2007) 150 Cal. App. 4th 350, 358].) They argue that these types of schedules are existing terms and conditions of his employment, not any change.

Plaintiff does not engage with this authority or argument in opposition; instead Plaintiff argues “a multitude of actions constitute ones that adversely impacted Andrade’s job—disparately scheduling him for grueling night shifts alone, failing to accommodate his disability by continuing to schedule him night shifts, weekends, and difficult shifts consecutively, reducing his hours or refusing to schedule him following his accommodation requests, taking away his keys, forcing him to work in only one facility center, unnecessarily stalking him during his shifts, detaining him for several hours in a meeting on his mental health, repeatedly interrogating him, calling the police because he arrived to work a shift he was scheduled for, placing him on an unconsented leave, and wrongfully terminating him[.]” (Opp. at 16:18-24.) First, this argument omits any citation to Plaintiff’s evidence. Second, Plaintiff does not materially dispute UMF 6 which reads: “[t]he position description explicitly notes the possibility of irregular work schedules and assignment to evening shifts.” If irregular work schedules and night shifts are expected, an assignment to night shift cannot be adverse treatment within the meaning of FEHA.

The Court cannot conclude on the record before it that Plaintiff has made out a *prima facie* case for age discrimination. Defendants are entitled to summary adjudication on this claim.

## 2. Failure to Accommodate

Defendant argues that the District met its duty to accommodate at each juncture of Andrade’s employment. Specifically: with respect to Andrade’s April 2023 leave, his May 10-18 accommodation for morning and midday shifts as well as his May 18, 2023 leave, and his requested accommodation to

work mornings and midday shifts only from July 25, 2023 through his termination in January 2024.

Under FEHA, an employer must make reasonable accommodations for known physical or mental disabilities of an employee, unless it subjects the employer to an undue hardship. (Gov. Code, § 12940(m).) “The elements of a failure to accommodate claim are (1) the plaintiff has a disability under the FEHA, (2) the plaintiff is qualified to perform the essential functions of the position, and (3) the employer failed to reasonably accommodate the plaintiff’s disability. [Citation.]” (*Scotch v. Art Institute of Calif.* (2009) 173 Cal.App.4th 986, 1009-1010.) “Two principles underlie a cause of action for failure to provide a reasonable accommodation. First, the employee must request an accommodation. [Citation.] Second, the parties must engage in an interactive process regarding the requested accommodation and, if the process fails, responsibility for the failure rests with the party who failed to participate in good faith. [Citation.]” (*Avila v. Continental Airlines, Inc.* (2008) 165 Cal.App.4th 1237, 1252.) “An employee whose disability is not apparent is ... obliged to tender a specific request for a necessary accommodation. [Citation.]” (*Spitzerv. The Good Guys, Inc.* (2000) 80 Cal.App.4th 1376, 1384.)

Additionally, Plaintiff must also show he or she suffers from a disability covered by FEHA and that he or she is a qualified individual. (*Jensen v. Wells Fargo Bank* (2000) 85 Cal.App.4th 245, 256.) To show that a plaintiff is a qualified individual, plaintiff must prove that he or she can perform the essential functions of the position to which reassignment is sought, rather than the essential functions of the existing position. (*Ibid.*) “The employee bears the burden of giving the employer notice of his or her disability. [Citation.]” (*Avila, supra*, 165 Cal.App.4th at p. 1252.) “Although no particular form is required, [t]he duty of an employer reasonably to accommodate an employee’s handicap does not arise until the employer is aware of the respondent’s disability and physical limitations.” (*Ibid* [internal quotations and citations omitted].) “[T]he employee can’t expect the employer to read his mind and know he secretly wanted a particular accommodation and sue the employer for not providing it. Nor is an employer ordinarily liable for failing to accommodate a disability of which it had no knowledge. ...” (*Id.* at pp. 1252-1253 [internal quotations and citations omitted].)

“[A]n employer who knows of a disability of an employee has an affirmative duty to make known to the employee other suitable job opportunities with the employer and to determine whether the employee is interested in, and qualified for, those positions, if the employer can do so without undue hardship or if the employer offers similar assistance or benefit to other disabled or nondisabled employees or has a policy of offered such assistance or benefit to any other employees.” (*Prilliman v. United Air Lines, Inc.* (1997) 53 Cal.App.4th 935, 951-952.)

Here, three specific requests for accommodation are at issue: Plaintiff’s 2023 leave, his May 10-18 accommodation and leave, and his July 2023 accommodation. (Defendants’ Notice of Motion at § II.) The Court starts with the “April 2023 Leave.”

On April 13, 2023 Plaintiff alleges that while he was on a night shift he “could go no further” and told his coworker “I have to go to the hospital.” (SAC at ¶ 18.) Defendant argues that this first period of leave “was both self-initiated and maintained due to his own representation that he was sick and could not return to work.” (Motion at 13:2-3; see also Ex. A [Andrade 1/9/25 Depo.] at 114:7 – 115:4.) Defendant also notes that “a notification of sickness does not put an employer on notice of a disability.” (Mot. at 13:4-5 [citing *Avila v. Continental Airlines, Inc.* (2008) 165 Cal.App.4th 1237,

1248].)

The undisputed evidence is that Andrade requested leave in April 2023 due to illness and the Defendant granted it. However, the SAC also alleges that prior to this “Mr. Andrade pleaded to Pleasant Hill to provide a regular two-day rest period during his weekly schedule. Specifically, on multiple occasions in early 2023, Mr. Andrade pleaded to his supervisor, Jose Martinez (“Mr. Martinez”) to not be scheduled for late-night shifts and to have at least two days off schedule each week. The late-night shifts substantially affected Mr. Andrade's well-being and mental health.” (SAC at ¶ 10.) In support of this allegation in his additional material facts in opposition, Plaintiff cites to his own deposition and declaration.

Q. Did you inform Pleasant Hill that you [were] requesting to be taken off graveyard shifts and for two consecutive days off are for your mental health?

[objection]

This would be before April 13th of 2023.

A. Yes.

Q. Did Pleasant Hill accommodate this request?

A. Before 2023?

Q. Before April 13th, 2023.

A. No, absolutely not.

Q. And April 13th, 2023, did you – did you call off work during your shift?

A. I did not phone call off work. I told Carlos that I needed to go to the hospital. Yes. So I considered that a call-out.

(Plaintiff's Depo. II 362:2-14.)

At paragraph 9 of his declaration, Plaintiff testifies that “[d]ue to my worsening mental health and worsening symptoms arising from my disability at this time, I requested that my supervisor, Jose Martinez, schedule me for reasonable working hours, including the express request that I receive at least two consecutive days off each work to be able to recover from the strenuous shifts Pleasant Hill imposed on me. I made these requests verbally to Jose Martinez on at least six different occasions from 2022 through April 13th, 2023.” (Andrade Decl. at ¶ 9.)

Defendant's motion does not address the precipitating requests prior to the April 2023 leave. The Court concludes that there is a genuine dispute of material fact with respect to whether Plaintiff requested accommodation (to be taken off graveyard shifts and for two consecutive days off) prior to his April 2023 leave and whether those requests were accommodated. As a consequence, the Court need not reach Defendants' arguments regarding the May 10-18 accommodation and leave or the July 2023 leave because they would not entirely dispose of Plaintiff's cause of action.

Defendants are not entitled to summary adjudication on this claim.

#### 4. Workplace Harassment

Defendant moves for summary adjudication on Plaintiff's fourth cause of action for workplace harassment on the grounds that the evidence does not support the alleged scheduling abuse, scheduling and personnel decisions cannot serve as the basis for a harassment claim, the request for keys was neutral as to age or disability, and the call to police was privileged under Civil Code section 47(b).

In the SAC, Plaintiff alleges that Defendants unwelcome harassment included "requiring Mr. Andrade to work the most demanding shifts, forcing Mr. Andrade to be solely responsible for events consisting of more than 300 attendees and as against company policy, consecutively scheduling Mr. Andrade without reasonable time off, unilaterally taking Mr. Andrade off the schedule after requesting reasonable accommodations, berating Mr. Andrade and unreasonable[y] demanding that Mr. Andrade surrender his buildings keys in an attempt to force him to resign, calling the police on Mr. Andrade without cause providing false information to the police and causing Mr. Andrade to be subject to an involuntary hold." (SAC at ¶ 82.)

Under § 12940(j)(1) it is an unlawful employment practice "[f]or an employer ... because of ... physical disability ... [or] medical condition ... to harass an employee." Cal. Gov. Code § 12940(j)(1). The elements of a FEHA harassment claim are: (1) the plaintiff belongs to a protected group; (2) the plaintiff was subjected to unwelcome harassment because of being a member of that group; and (3) the harassment was sufficiently severe or pervasive to alter the conditions of employment and create an abusive working environment. (*Lyle v. Warner Bros. Television Prods.* (2006) 38 Cal. 4th 264, 279.)

To prevail on a harassment claim under FEHA, a plaintiff must produce evidence they were subjected to "offensive comments or other abusive conduct" that is (1) based on a "protected characteristic" (here, a claimed disability) and (2) "sufficiently severe or pervasive as to alter the conditions of [his] employment." (*Serri v. Santa Clara University* (2014) 226 Cal.App.4th 830, 871.) To constitute harassment, the conduct must be so objectively severe or pervasive as "to create a hostile or abusive working environment." (*Id.* at p. 870.) Factors to consider in this context include the frequency of the conduct, its severity, whether it is physically threatening or humiliating, and whether it unreasonably interferes with the employee's work performance. (*Ibid.*)

FEHA "harassment claims focus on 'situations in which the *social environment of the workplace* becomes intolerable because the harassment (whether verbal, physical, or visual) communicates an offensive message to the harassed employee.'" (*Carranza v. City of Los Angeles* (2025) 111 Cal.App.5th 388, 401 [emphasis original] [citing *Bailey v. San Francisco Dist. Attorney's Office* (2024) 16 Cal.5th 611, 627].)

#### Scheduling

As discussed *infra*, the evidence before the Court does not support a conclusion that Plaintiff was subjected to abusive scheduling. Furthermore, Defendant has adduced authority which suggests that scheduling decisions are the type of personnel management actions that are actionable as discrimination if based on improper motives but cannot form the basis of a harassment claim. (See *Janken v. GM Hughes Electronics* (1996) 46 Cal.App.4th 55, 65 [actions necessary to carry out the



duties of business and personnel management do not come within the meaning of harassment].)

Demand for Building Keys

With respect to Defendants demand for Plaintiff's building keys on May 18, 2023, Defendants refer to the following deposition testimony to support their contention that this request was not subjectively offensive nor aggressive:

Q. Do you recall whether Chris Petlock was telling you not to go into any of the meetings?

A. Yes. After the meeting with Chris Petlock and Lance Hurtado in Nicole Watson's office, after he gave me a blue piece of sticky note paper, I - when that meeting was over, after he was trying to get my keys -- it was a weird -- that was very awkward. I didn't really understand that meeting. As I walked out of that meeting, I went down the hallway, made a left, made a quick right, and went into the Rotary to feel safe because those guys -- I feel comfortable around the Rotary people. And I heard behind me, "Don't go in there." And I'm like, "I'm coming in here."

(Def Ex. A at 224:18 225:6 [1/16/2025 Andrade Depo].)

In opposition, Plaintiff gives additional testimony that the request for keys was aggressive:

Petlock and Herriman follow after me, watching me intently, stalking me from one room to another while I am trying to get away from them. Petlock and Herriman again usher me into a separate office space where Petlock starts to aggressively demand my building keys, lurching towards me and slamming his hand on the table. I believe that Petlock is trying to force me to resign through the act of handing over my building keys as I require my building keys to work. I did not wish to lose my job and generally feel unsafe throughout the interaction with Petlock.

(Pltf Exh. B, Decl. Plaintiff ¶ 21.)

These two statements are not necessarily in conflict. Neither does a demand for keys appear to support a cause of action for workplace harassment on its own. However, the greater context of this demand is what Plaintiff describes as an "interrogation." Specifically, the SAC details two instances where Plaintiff alleges he was "interrogated" in an office: an intense "interrogation" where he broke into tears (SAC at ¶ 24) and another confrontation where he alleges Defendant Petlock demanded his building keys in exchange for medical benefits (SAC at ¶ 25.)

Defendant argues on reply that "[n]either of these circumstances, however, is alleged in the SAC as bases for Plaintiff's harassment claim." (Reply at 9:6-7.) That is not strictly true; paragraphs 24 and 25 of the SAC detail two alleged "interrogations." And paragraph 76 of the cause of action for workplace harassment incorporates all of the proceeding allegations by reference.

Notably, however, "[w]orkplaces can be stressful and relationships between supervisors and their subordinates can often be contentious. But FEHA was not designed to make workplaces more collegial; its purpose is to eliminate more insidious behavior like discrimination and harassment based on protected characteristics." (*Doe v. Department of Corrections & Rehabilitation* (2019) 43

Cal.App.5th 721, 737.) "FEHA was not designed to make workplaces more collegial; its purpose is to eliminate more insidious behavior like discrimination and harassment based on protected characteristics." (*Ibid.*)

However, even if the "interrogation" incidents qualified as objectively severe and abusive, they would not constitute harassment because they involved personnel decisions by Petlock within the scope of his duties as Plaintiff's supervisor. That said, they may still support a claim for disability discrimination.

#### Police Call

Finally, the Court notes that the allegations regarding Defendants' call to police was the subject of a prior anti-SLAPP motion by Defendants. At the time of Defendants' anti-SLAPP motion, however, the Court could not conclude that Plaintiff was seeking recovery based on protected activity. Now, however, Plaintiff relies directly on his allegations of Defendants call to police, statements to police, and his subsequent involuntary hold to support his claim for workplace harassment. Defendants call and statements to police are privileged under Civil Code § 47(b) and cannot support Plaintiff's claim under Government Code § 12940(j)(1). "[A] communication concerning possible wrongdoing, made to an official government agency such as a local police department, and which communication is designed to prompt action by that entity, is as much a part of an 'official proceeding' as a communication made after an official investigation . . . ." (*Williams v. Taylor* (1982) 129 Cal. App. 3d 745, 753 [employer's report to law enforcement concerning suspected theft by former employee privileged under section 47(b)].)

Defendant is entitled to summary adjudication of Plaintiff's fourth cause of action for workplace harassment claim. However, as noted above, these factual allegations (aside from the call to police) may support Plaintiff's claim for disability discrimination.

Defendants are entitled to summary adjudication of Plaintiff's harassment claim.

### 3. Disability Discrimination

Defendants move for summary adjudication of Plaintiff's third cause of action for disability discrimination on the grounds that Plaintiff was not a capable employee at the time of his May 18, 2023 administrative leave.

"[T]he plaintiff bears the burden of establishing a *prima facie* case of discrimination based upon physical disability, the burden then shifts to the employer to offer a legitimate, nondiscriminatory reason for the adverse employment action. Once the employer has done so the plaintiff must offer evidence that the employer's stated reason is either false or pretextual, or evidence that the employer acted with discriminatory animus, or evidence of which would permit a reasonable trier of fact to conclude the employer intentionally discriminated." (*Faust v. California Portland Cement Co.* (2007) 150 Cal.App.4th 864, 886, internal citations and quotations omitted.)

A *prima facie* case of disability discrimination requires a plaintiff to show that the plaintiff (1) suffered from a disability or was regarded as suffering from a disability; (2) could perform the essential duties of the job with or without reasonable accommodations; and (3) was subjected to an adverse employment action because of the disability or perceived disability. (*Sandell v. Taylor-Listug, Inc.*

(2010) 188 Cal.App.4th 297, 310.) “The prima facie burden is light; the evidence necessary to sustain the burden is minimal. [Citation.]” (*Ibid.*) Generally, an employee need only offer sufficient circumstantial evidence to give rise to a reasonable inference of discrimination. (*Ibid.*)

Defendants argue that “Andrade was not capable of performing the essential functions of his job when he was placed on paid administrative leave on May 18, 2023.” (Mot. at 14:12-13.) Defendants’ evidence in support of this contention is an email they received from an employee of Kaiser Permanente who was renting a District conference room that “expressed concern about Andrade lingering in the conference room even after being asked to leave, asking questions about mental health facilities of the attendees, looking at length at the sign-in sheets, and making the Kaiser staff feel uncomfortable.” (UMF 17.) Defendants also refer to Plaintiff’s involuntary psychiatric hold following their call to police as evidence he could not perform the essential duties of his job; the Court notes that notwithstanding this incident, Plaintiff returned to work on July 25, 2023. (UMF 26.) The Court cannot conclude that Defendants have met their initial burden with respect to this element. Defendants are not entitled to summary adjudication of Plaintiff’s claim for disability discrimination.

#### 5. Failure to Prevent

Defendants’ argument with respect to Plaintiff’s failure to prevent claim is premised on their contention that his other claims fail. However, because the Court concludes that Defendants are not entitled to summary adjudication on Plaintiff’s disability discrimination claim, they are not entitled to summary adjudication on Plaintiff’s failure to prevent claim.

#### 6. Retaliation

Defendants move for summary adjudication on Plaintiff’s sixth cause of action for retaliation on several grounds.

In a FEHA retaliation case, courts must apply the *McDonnell Douglas* burden-shifting framework that is applied in FEHA discrimination claims. Under this framework, the plaintiff must prove a *prima facie* case; the employer must then articulate a legitimate, nonretaliatory reason for the action; and the plaintiff must then prove the employer’s reason is a pretext. (*Cornell v. Berkeley Tennis Club* (2017) 18 Cal.App.5th 908,942; see *Flait v. North American Watch Corp.* (1992) 3 Cal.App.4th 467, 475-476.)

A defendant’s summary judgment motion “slightly modifies the order of these [*McDonnell Douglas*] showings.” (*Wills v. Superior Court* (2011) 195 Cal.App.4th 143,160). “Consequently, [Defendant has] the initial burden to either (1) negate an essential element of [Plaintiff’s] *prima facie* case [] or (2) establish a legitimate, non[retaliatory] reason for terminating [Plaintiff].” (*Id.*).

Because Plaintiff’s only remaining cause of action is for disability discrimination, the Court will focus its analysis there. Defendant argues that Plaintiff did not suffer an adverse employment action (the third essential element of a *prima facie* case of disability discrimination). Nevertheless, they acknowledge that Plaintiff’s January 2024 termination was an adverse employment action. But they argue that “it lacks any causal link to his engagement in any protected activity.” (Mot. at 20:12-13.) Furthermore, Defendants argue that the absence of temporal proximity between Plaintiff’s alleged protected activity and his termination is fatal to his cause of action for FEHA retaliation.

Plaintiff filed the instant lawsuit October 11, 2023 and was terminated just over three months later on January 31, 2024 (after a January 24, 2024 Skelly Notice). This temporal gap is not so wide that it cannot support an inference of causation. Perhaps tacitly acknowledging Plaintiff's *prima facie* case, Defendants argue that "Andrade's conduct on January 17, 2024 provided a legitimate, non-retaliatory basis for [his] termination." (Mot. at 20:24-25.) However, a jury could conclude from the temporal proximity along with Plaintiff's evidence regarding failure to accommodate and the allegations regarding his "interrogations" that Defendant's stated basis for termination is weak, implausible or inconsistent, such that the explanation is unworthy of credence. (*Hom v. Cushman & Wakefield Western* (1999) 72 Cal.App.4th 798, 806-807.)

Summary adjudication on the sixth cause of action is denied.

#### Objections to Evidence

The Court rules only on those objections material to the Court's ruling on the motion for summary judgment. (Code Civ. Proc. § 437c(q).)

Plaintiff's Evidentiary Objection 1. This objection is compound; Plaintiff objects to four individual paragraphs of the Declaration of Slater Bleichner-Jones and Exhibit C thereto. **Overruled.**

**5. 9:00 AM CASE NUMBER: C24-02918**  
**CASE NAME: CAMAY MCELVANE VS. EAST BAY ASIAN LOCAL DEVELOPMENT CORPORATION**  
**\*HEARING ON MOTION IN RE: AN ORDER PRELIMINARILY APPROVING THE CLASS ACTION SETTLEMENT, NOTICE OF SETTLEMENT, AND SETTING HEARING FOR FINAL APPROVAL**  
**FILED BY: MCELVANE, CAMAY JONTUE**  
**\*TENTATIVE RULING:\***

#### Summary

Plaintiff Camay Jontue McElvane, individually, and on behalf of others similarly situated, ("Plaintiff") filed a Motion for Order Preliminarily Approving the Class Action Settlement with Defendant East Bay Asian Local Development Corp. ("Defendant"), Approving Notice of Settlement and Setting a Hearing for Final Approval ("Motion"). The Motion is **granted** as set forth herein. No appearance is required at the hearing on July 1, 2026.

#### Background

Plaintiff's motion seeks preliminary approval of a class action and PAGA settlement. Plaintiff alleged ten wage and hour violations, including failure to pay minimum wages and overtime, meal and rest break violations, inaccurate wage statements, and failure to reimburse business expenses, plus a PAGA claim. The settlement class consists of approximately 232 non-exempt, hourly employees who worked for the defendant in California during the class period from October 28, 2020 to October 23, 2025.

The parties agreed to a non-reversionary gross settlement of \$439,000 after extensive negotiations assisted by mediator Brandon McKelvey. This amount was a compromise reflecting risks related to

class certification, liability, and damages. Class counsel analyzed time records provided by the defendant and estimated maximum potential exposures of approximately \$193,951 in unpaid wages, \$282,531 in meal period claims, \$201,808 in rest period claims, \$453,100 in wage statement violations, \$688,031 in waiting time penalties, \$11,600 in unreimbursed expenses, and \$460,600 in PAGA penalties—totaling over \$2 million in potential liability. After deducting specified payments, the remaining net settlement amount will be distributed to participating class members proportionally based on workweeks worked during the class period.

The settlement agreement allocates the gross settlement amount as follows: up to \$146,333.33 in attorneys' fees to class counsel (Emil Davtyan, David Yeremian, and Natalie Haritounian of D.Law, Inc.), up to \$30,000 in litigation costs, up to \$10,490 in settlement administration costs to Apex Class Action, LLC (who will serve as settlement administrator), \$5,000 as a class representative service payment to plaintiff McElvane, and \$25,000 in PAGA civil penalties (with 65%/\$16,250 payable to the LWDA and 35%/\$8,750 allocated as individual PAGA payments to aggrieved employees based on pay periods worked). Defendant will also pay its corporate payroll tax obligations on class member payouts separately from the gross settlement amount.

Class members will receive notice via first-class mail with address verification through the National Change of Address Database, and will have 60 days to opt out, object, or dispute their credited workweeks. The settlement administrator will resolve disputes and may request personnel files from the defendant as needed. No portion of the gross settlement amount reverts to the defendant. The motion requests the court appoint Apex Class Action, LLC as settlement administrator, conditionally certify the class, approve the settlement's fairness, and schedule a final approval hearing.

### **Analyses**

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

### Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval.

Similarly, litigation costs and the requested representative payment of \$5,000 for the representative plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

### Ruling

1. The settlement is sufficiently fair, reasonable, and adequate to justify *preliminary* approval. Plaintiff’s Motion is **granted**.
2. Counsel are directed to prepare an order, attaching a copy of this ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384(b).
3. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorney’s fees are to be withheld by the administrator until released by the Court after review of the compliance statement.
4. The Court may issue a release of the remaining 5% fees through an unreported minute order without a hearing upon review of the Plaintiff’s compliance statement.
5. No appearance is required at the hearing on July 1, 2026.

**6. 9:00 AM CASE NUMBER: C25-02253**  
**CASE NAME: MARLON LEE VS. DANIELE JACUZZI**  
**HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT**  
**FILED BY: MEADOW CREEK GROUP, LLC**  
**\*TENTATIVE RULING:\***

Defendant Meadow Creek Group, LLC (“Defendant”) brings this demurrer to the first amended complaint (“Complaint”) of plaintiff Marlon Lee (“Plaintiff”). Defendant challenges Plaintiff’s first

cause of action for negligence and second cause of action for premises liability.

For the reasons discussed below, Defendant's demurrer to the first cause of action for negligence and the second cause of action for premises liability is **SUSTAINED** with leave to amend. Plaintiff may file and serve an amended complaint within 15 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

#### **Meet and Confer**

The meet and confer requirement has been satisfied. (Amy L. Foscalina Decl., ¶ 4, Exh. B; Code Civ. Proc., § 430.41, subd. (a)(3)(B).)

#### **Legal Standard for Demurrer**

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "We also accept as true facts which may be inferred from those expressly alleged." (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) A demurrer challenges "the sufficiency of the allegations in a complaint as a matter of law," not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (*Id.* at pp. 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a "court will not consider facts which have not been alleged in the complaint unless they may be reasonably inferred from the matters which have been pled or are proper subjects of judicial notice." (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) "[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff." (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

"Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) "However, leave to amend should not be granted where, in all probability, amendment would be futile." (*Foroudi v. The Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1000 [citations and internal quotes omitted].)

#### **Background: Allegations from the Complaint**

Plaintiff filed the initial complaint in this matter on October 7, 2025. Plaintiff filed the instant Complaint on January 16, 2026.

The Complaint alleges that on September 21, 2023, Plaintiff was slashed in the face with a knife and hit with an ax on his shoulder and neck, resulting in severe injuries. (Complaint, ¶¶ 9-10.) Plaintiff was attacked by a known criminal transient on Slatten Ranch Road North of Wicklow Way in the City of Antioch. (*Id.* at ¶ 9.) Plaintiff alleges that Defendant owns property on, adjacent to and/or near where the attack occurred. (*Id.* at ¶ 2.) The attacker's camper was parked at the location of the attack. (*Id.* at ¶ 15.) The location of the attack was "known to regularly have trucks and vehicles parked overnight on and near them, as well as dangerous people and animals loitering and living in vehicles, such as the assailant who attacked Plaintiff. Plaintiff is further informed and believes that the area had a known history of crime including but not limited to reported vandalism incidents, previous assaults of people, and other crime." (*Id.* at ¶ 16.)

“Despite this known history of crime, Defendants allowed persons and dangerous animals to continue to live, loiter, and/or trespass on the SUBJECT PROPERTIES and adjacent roadways and sidewalks prior to and on the date of the SUBJECT INCIDENT. Defendants failed to take reasonable measures to maintain the SUBJECT PROPERTIES in a reasonably safe condition, including taking reasonable measures to prevent reasonably foreseeable third-party criminal conduct. Defendants knew, or should have known, that people were using their properties to illegally camp, loiter, and engage in criminal conduct, creating a menace and hazard to those lawfully on the public roadways, including but not limited to Slatten Ranch Road and Wicklow Way.” (Complaint, ¶ 17.)

“Defendants took no, or at minimum, inadequate action to remedy, warn against, protect against, or minimize the risk of harm from reasonably foreseeable third party criminal conduct, which increased the risk of harm to those lawfully on the properties, sidewalks and roadways near and adjacent to the SUBJECT PROPERTIES.” (Complaint, ¶ 18.) Defendant had a duty to keep the sidewalk area adjacent to their property in a safe and non-dangerous condition. (*Id.* at ¶ 30.) Defendant “allowed a large number of persons to loiter, camp, store personal belongings, possess vicious dogs, and accumulate significant trash and debris on their properties and the abutting sidewalk, such that they were dangerous to property and persons using the sidewalk in a reasonable manner. . .” (*Ibid.*) “[T]he condition of Defendants’ properties was such that the assailant asserted that Slatten Ranch Road was private property, which he apparently believed that he had the right to prevent access to with his dogs and with the use of force.” (*Id.* at ¶ 32.)

Plaintiff seeks damages according to proof. (Complaint, p. 15.)

### **Discussion**

Defendant argues that the Complaint is uncertain, that Plaintiff has not established a duty of care, and that Plaintiff has not established proximate cause. (MPA ISO Demurrer, pp. 3-10.)

### **Uncertainty**

Defendant contends that the Complaint fails because it is uncertain due to not sufficiently identifying the location of the incident. (Notice of Demurrer, p. 2; MPA ISO Demurrer, p. 5; Reply, p. 2.) “Plaintiff does not plead sufficient facts to identify the location where the Incident occurred. . .” (MPA ISO Opposition, p. 5:19-20.) Defendant also asserts that the defined term in the Complaint, “Subject Properties,” is vague and that it is unclear whether the term “refers to the real property owned by each Defendant, to the two public roads, or both.” (*Id.* at p. 5:13-14.)

Defendant bases this argument on Code of Civil Procedure section 430.10, subdivision (f) (Notice of Demurrer, p. 2), which allows a party to demurrer when “The pleading is uncertain. As used in this subdivision, ‘uncertain’ includes ambiguous and unintelligible.”

Plaintiff argues that the Complaint “is sufficiently certain as it provides Defendant with fair notice of the essential facts of the claim and the locations where the wrongful and criminal acts occurred.” (Opposition, p. 4.) Plaintiff points out that the assault did not take place in a single location, as the assailant went from his camper to Plaintiff’s truck and back and forth a few times. (*Ibid.*)

“ ‘[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.’ ” (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695.) “ ‘A demurrer for uncertainty is strictly construed,



even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.’ ” (*Ibid.*) “ ‘[U]nder our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend.’ ” (*Ibid.*) “A special demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading, but is directed at the uncertainty existing in the allegations actually made.” (*Butler v. Sequeira* (1950) 100 Cal.App.2d 143, 145-146.)

Here, the Court finds that the defined term, “Subject Properties” that first appears at paragraph 8 of the Complaint is neither vague nor ambiguous/uncertain as it refers to the “properties owned, controlled, leased, managed, and/or maintained by Defendants,” which are located “on or near Slatten Ranch Road and Wicklow Way, Antioch, CA 94531.” (Complaint, ¶ 8.)

With respect to Defendant’s argument that “Plaintiff does not plead sufficient facts to identify the location where the Incident occurred,” the Court disagrees. The Complaint alleges that the attack took place “on or near Slatten Ranch Road north of Wicklow Way in the City of Antioch.” (Complaint, ¶ 9.) Not only does it identify the closest intersection to the attack, but it identifies where in relation to the intersection the attack occurred—north of Wicklow Way.

In light of the analysis above, Defendant’s demurrer to Plaintiff’s Complaint for uncertainty is **OVERRULED**.

#### Duty of Care

“The elements of a negligence cause of action are ***the existence of a legal duty of care***, breach of that duty, and proximate cause resulting in injury.” (*McIntyre v. The Colonies-Pacific, LLC* (2014) 228 Cal.App.4th 664, 671, italics and boldface added.) “The elements of a cause of action for premises liability are the same as those for negligence: ***duty***, breach, causation, and damages.” (*Castellon v. U.S. Bancorp* (2013) 220 Cal.App.4th 994, 998, italics and boldface added.)

Here, Defendant attacks Plaintiff’s negligence and premises liability claims with arguments that Plaintiff has not established a duty of care. (MPA ISO Demurrer, pp. 3-10.) Defendant addresses both the statutory duty of care and the general duty of care. (MPA ISO Demurrer, pp. 3-10.)

#### *Statutory Duty of Care*

Defendant argues that the Streets and Highways Code does not create a duty because it deals with repairs and there are no allegations that the sidewalk here was out of repair. (*Id.* at p. 3.) Defendant argues that certain ordinances of the Antioch Municipal Code that appear in the Complaint deal with bicycles or “abandoned, wrecked, dismantled, or inoperative vehicles,” neither of which are alleged to have caused any alleged injuries here. (*Ibid.*) Other portions of the Antioch Code cited in the Complaint deal with nuisance, which Defendant applies only to the conditions “on the property,” which is not alleged to be the situation here. (*Id.* at p. 4.) With respect to Title 7, Chapter 8, “Sidewalk Maintenance and Repair,” Defendant cites what maintenance and repair include and argues that “Plaintiff has pled no facts showing a violation of this section that caused the Incident. This Chapter does not apply to the loitering or camping of persons as claimed by Plaintiff, and the ordinance makes no such mention thereof.” (MPA ISO Demurrer, p. 4:13-24.)

Plaintiff argues that although the Streets and Highway Code “generally establishes an abutting landowner’s duty to maintain a sidewalk only to the municipality, California courts have long held that a private cause of action arises directly against the landowner if a local municipal ordinance explicitly imposes a duty to the public and creates liability for injuries.” (Opposition, p. 12.) Plaintiff cites to *Selger v. Steven Brothers, Inc.* (1990) 222 Cal.App.3d 1585, 1590 and *Gonzales v. City of San Jose* (2004) 125 Cal.App.4th 1127, in support of this. (*Ibid.*) Plaintiff argues that in this case, the Antioch Municipal Code creates such a private right of action. (Opposition, p. 12.)

Here, it is true that although Street and Highway Code section 5610 does not impose liability on abutting owners for injuries received by travelers from defective sidewalks (*Schaefer v. Lenahan* (1944) 63 Cal.App.2d 324, 331-332), municipal ordinances can make adjacent landowners liable for sidewalk defects. (*Gonzales v. City of San Jose* (2004) 125 Cal.App.4th 1127, 1138-1139 [“Under the two laws, both San Jose as well as the abutting property owner could be held liable to a plaintiff injured as a result of a dangerous condition on a city-owned sidewalk.”].)

Antioch Municipal Code section 7-8:02, subdivision (c), states in full:

Maintenance and repair of the sidewalk area ***shall include, but not be limited to***, maintenance and repair of surfaces including grinding, removing and replacing sidewalk, repairing and maintaining curb and gutters, removing and filling or replacing parking strips, removing of weeds and/or debris, maintaining signs allowed under the Antioch Municipal Code, tree root pruning and installing of root barriers, trimming shrubs and/or ground cover and trimming shrubs in area within the sidewalk area so that the sidewalk area will remain in a condition that is not dangerous to property or to persons using the sidewalk area in a reasonable manner and which will not interfere with the public convenience in the use of the sidewalk area.  
(Italics and boldface added.)

Antioch Municipal Code Section 7-8.03 states in full that

The owner shall owe a duty to members of the public to keep and maintain the sidewalk area in a safe and non-dangerous condition. ***If, as a result of the failure of owner to maintain the sidewalk area in a non-dangerous condition as required by § 7-8.02, any person suffers injury or damage to person or property***, the owner shall be liable to such person for the resulting damages or injury.  
(Italics and boldface added.)

The Court finds that the Complaint does not plead a statutory duty. The sidewalk ordinance is not seemingly triggered because Plaintiff is not alleged to have been on the sidewalk when he was attacked as the Complaint alleges that the attack occurred when he was “in his parked semi-truck,” and had only put his foot out when the attacker became aggressive and hostile. (Complaint, ¶¶ 9-10.) Further, Antioch Municipal Code section 7-8:02, subdivision (c), lists the sort of issues that property owners have a duty to maintain and the danger that caused Plaintiff’s injuries here are not explicitly identified as being a property owner’s duty. While neither Defendant nor Plaintiff address the

“including but not limited to” portion of the ordinance, the rule of statutory construction known as *ejusdem generis* provides that “when a general word or phrase follows a list of specifics, the general word or phrase will be interpreted to include only items of the same class as those listed.” (*In re Marriage of Mullan & Kodiyamplakkil* (2020) 51 Cal.App.5th 604, 615 [“applying the doctrine of *ejusdem generis* to the phrase ‘including, but not limited to’ . . . we conclude a court is limited to circumstances that are similar in nature to those enumerated”].) Here, the list that appears in 7-8:02 involves tree roots, cracks and weeds, etc., things more akin to maintenance than policing the sidewalk for homeless people who might be using the sidewalk.

The Court notes that Antioch Municipal Code § 5-1.202(C)(1) identifies a nuisance as “[a]ny vacant building, structure or other property that is unlocked or unsecured or has broken or missing doors or windows or other unsecured openings allowing unauthorized access by trespassers, or constituting a potential attraction to children or a harbor for vagrants, criminals, or other unauthorized persons, or so as to enable persons to resort to committing nuisance or other criminal activities,” which seems to come close to the situation here, but here the Subject Properties are alleged to be “vacant lots” with no structures present. (Complaint, ¶ 21.) “[F]acts not alleged are presumed not to exist.” (*Kramer v. Intuit, Inc.* (2004) 121 Cal.App.4th 574, 578.)

#### *General Duty of Care*

Defendant argues that, with respect to the *Rowland* factors (foreseeability of harm to the plaintiff, the degree of certainty that the plaintiff suffered injury, the closeness of the connection between the defendant’s conduct and the injury suffered, the moral blame attached to the defendant’s conduct, the policy of preventing future harm, the extent of the burden to the defendant and consequences to the community of imposing a duty to exercise care with resulting liability for breach, and the availability, cost, and prevalence of insurance for the risk involved), although it is undisputed that Plaintiff suffered an injury, almost all the other factors go in their favor. (MPA ISO Demurrer, pp. 6 [Defendant also acknowledges that it is insured but points out that this should be a minor factor in establishing a duty of care].) Defendant points out that there must be “heightened” foreseeability of third-party criminal activity shown by prior similar incidents or other indications of a reasonably foreseeable risk of violent criminal assaults in that location. (*Id.* at p. 7.) Defendant further points out that a special relationship is needed between a plaintiff and defendant for the defendant to be liable for the third-party criminal behavior of another. (*Ibid.*) Defendant also contends that Plaintiff was attacked while he was on a public road and case law supports no duty to those on public property adjacent to the landowner’s property. (*Id.* at p. 8.)

Plaintiff argues that he has sufficiently pleaded a general duty of care, especially under the liberal pleading standard, which liberally construes a complaint and accepts all properly pleaded facts as true. (Opposition, pp. 4-5.) Plaintiff contends he pled actual and constructive notice of third-party danger (*Id.* at p. 5, citing ¶¶ 16, 18, 19, and 20), the Defendant’s specific negligent omissions (*Id.* at p. 6, citing ¶¶ 17, 18, 19, 20, and 22), and that the duty was owed based on ownership and “actual exercise of control over” the where the incident occurred. (*Id.* at p. 6, citing ¶¶ 21, 35, 36, and 37.) Plaintiff further contends that the *Rowland* factors do not support an exception to the general duty of care under Civil Code section 1714, and that he sufficiently pleaded a history of violent crime so as to satisfy heightened foreseeability. (*Id.* at pp. 6-8.) Plaintiff also contends that there are ownership and control allegations that raise questions of fact that cannot be resolved on demurrer. (*Id.* at pp. 9-11.)

Here, the Court finds Defendant's argument regarding the need for a special relationship to be involved in order to hold one liable for third-party criminality persuasive. "[I]t also is well established that, as a general matter, there is no duty to act to protect others from the conduct of third parties. (*Delgado v. Trax Bar & Grill* (2005) 36 Cal.4th 224, 235.) "A defendant may owe an affirmative duty to protect another from the conduct of third parties if he or she has a 'special relationship' with the other person." (*Ibid.*) This sort of special relationship has been found in cases of business proprietors and their "tenants, patrons, or invitees." (*Id.* at p. 237.) However, Defendant owns a vacant lot and Plaintiff's presence there is not alleged to have been based on any sort of invitation, or tenant or patron type of relationship. Despite Defendant raising this argument in the demurrer (and reply), the opposition is silent on this issue. The *Alcaraz* case cited by Plaintiff involves a tenant and their direct landlord, thus involving the sort of relationship that is not alleged in the Complaint here. (*Alcaraz v. Vece* (1997) 14 Cal.4th 1149, 1152 [it also does not involve third-party criminal conduct].) The *Alpert v. Villa Romano Homeowners Assn.* (2000) 81 Cal.App.4th 1320, case cited by Plaintiff is distinguishable because the harm there was caused directly from the unmaintained sidewalk, not from a third-party criminal.

Based on the above, the Court will SUSTAIN Defendant's demurrer based on the Complaint's failure to properly allege a duty.

#### Proximate Cause

"The elements of a negligence cause of action are the existence of a legal duty of care, breach of that duty, and **proximate cause** resulting in injury." (*McIntyre v. The Colonies-Pacific, LLC* (2014) 228 Cal.App.4th 664, 671, italics and boldface added.) "The elements of a cause of action for premises liability are the same as those for negligence: duty, breach, **causation**, and damages." (*Castellon v. U.S. Bancorp* (2013) 220 Cal.App.4th 994, 998, italics and boldface added.)

Assuming Plaintiff properly alleged

Here, proximate cause is an element of both negligence and premises liability. Had Plaintiff properly pled duty, and by extension breach of that duty, proximate cause would be presumed under the general pleading standard for these sorts of negligence claims. (See *Bockrath v. Aldrich Chemical Co., Inc.* (1999) 21 Cal.4th 71, 77.)

#### Ruling on the Demurrer

The Court **SUSTAINS** Defendant's demurrer to the first cause of action for negligence and the second cause of action for premises liability, with leave to amend. Plaintiff may file and serve an amended complaint within 15 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

7. 9:00 AM CASE NUMBER: C25-03578  
CASE NAME: LUIS CAMPOS VS. WELCOME MARKET, INC.  
\*MOTION/PETITION TO COMPEL ARBITRATION  
FILED BY: WELCOME MARKET, INC.  
\*TENTATIVE RULING:\*

Before the Court is a motion to compel arbitration and stay of proceedings filed by defendant Welcome Market, Inc.. For the reasons set forth, the motion is **denied**.

### **Background**

Plaintiff Luis Campos alleges he was employed as a non-exempt, hourly employee by defendant Welcome Market, Inc. from September 2023 to June 25, 2025. (Compl. ¶ 3.) Plaintiff filed a class action complaint, alleging violations of the Unfair Competition Law, Business & Professions Code section 17200, *et seq.* ("UCL") and various wage and hour violations under the Labor Code.

Defendant contends Plaintiff signed the Spanish language translated version of the Mutual Agreement to Arbitrate Claims with Welcome Market ("Arbitration Agreement") in 2024. (Moran Decl. ¶ 6 and Exh. A.) Welcome Market moves to compel arbitration of Plaintiff's claims after meeting and conferring with Plaintiff's counsel regarding the arbitration agreement. (Jackson Decl. ¶¶ 2, 3.) Plaintiff opposes the motion.

### **Procedure and Burden of Proof on Motion to Compel Arbitration**

Defendant moves to compel arbitration under the Federal Arbitration Act, 9 U.S.C. section 1, *et seq.* ("FAA") based on provisions of the Arbitration Agreement which state the Arbitration Agreement is "subject to and governed by" the FAA. Whether the Arbitration Agreement is governed by the FAA or the California Arbitration Act, Code of Civil Procedure section 1280 *et seq.* ("CAA"), the threshold issue of whether a valid and enforceable agreement to arbitrate exists is determined under California law, including whether defenses to enforcement of a contract, such as unconscionability, bar the enforcement of the arbitration agreement, as discussed in more detail below. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413; *Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 582.)

The party moving to compel arbitration "bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. [Citation.]" (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) (*See also Rosenthal, supra*, 14 Cal.4th at 413.) The Court as the trier of fact weighs the evidence in reaching a final determination regarding the validity and enforceability of the arbitration agreement. (*Engalla, supra*, 15 Cal.4th at 972.) Once the existence of an arbitration agreement is established, the burden is on the party opposing arbitration to prove a defense to its enforcement. (*Rosenthal, supra*, 14 Cal.4th at 413; *Alvarez v. Altamed Health Services Corp.* (2021) 60 Cal.App.5th 572, 580.) If a written arbitration agreement exists, it will be enforced unless there are grounds for its revocation. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125; *Alvarez, supra*, 60 Cal.App.5th at 580.)

### **Existence of An Agreement to Arbitrate**

Defendant has submitted undisputed evidence that the Arbitration Agreement was presented to Plaintiff to sign in 2024 and that he was given a Spanish language translation of the Arbitration Agreement. (Moran Decl. ¶¶ 5, 6.) Defendant has submitted evidence that the Spanish transaction of the Arbitration Agreement was signed by Plaintiff in July 2024, then by a representative of the company, and then filed and maintained in Plaintiff's personnel file. (Moran Decl. ¶¶ 5, 6 and Exh. A.) Plaintiff does not contest his execution of the Arbitration Agreement, and Defendant has met its burden of demonstrating the existence of an agreement to arbitrate made by Campos. (*Rosenthal, supra*, 14 Cal.4th at 413; *Alvarez, supra*, 60 Cal.App.5th at 580; *Engalla, supra*, 15 Cal.4th at 972.)

### **Plaintiff's Unconscionability Defense to Enforcement of the Arbitration Agreement**

Plaintiff contends the Arbitration Agreement cannot be enforced because it is unconscionable. The burden of proof of unconscionability is on Plaintiff as the party resisting arbitration. (*Rosenthal, supra*, 14 Cal.4th at 413; *Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.) Both procedural and substantive unconscionability must be proven to render a contract unenforceable, based on a sliding scale such that the greater the procedural unconscionability, the lesser the required showing of substantive unconscionability, and vice versa. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal. 4th 83, 114.) (See also *OTO, supra*, 8 Cal.5th at 125; *Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 910.) "Unconscionability is judged 'at the time [the contract is] made.' [Citations omitted.]" (*Cook v. University of Southern California* (2024) 102 Cal.App.5th 312, 322, fn. 2.)

#### **A. Procedural Unconscionability**

Procedural unconscionability involves the components of "oppression" and "surprise." (*OTO, supra*, 8 Cal.5th at 126.) Where the agreement is a contract of adhesion, typically a non-negotiable form contract drafted by the party seeking to compel arbitration, there is some showing of oppression and a degree of procedural unconscionability. (*OTO, supra*, 8 Cal.5th at 126; *Pinnacle, supra*, 55 Cal.4th at 247.) Surprise for purposes of procedural unconscionability occurs " 'where the allegedly unconscionable provision is hidden within a prolix printed form.' [Citation omitted.]" (*Pinnacle, supra*, 55 Cal.4th at 247.)

Plaintiff argues the Arbitration Agreement is procedurally unconscionable because it is a standard form contract of adhesion, presented for signature without Plaintiff on a take-it-or-leave-it basis and as a condition of Plaintiff's employment, without Plaintiff having the ability to negotiate its terms. The evidence is undisputed that execution of the Arbitration Agreement was required for Plaintiff's employment. (See Moran Decl. ¶ 5.) The lack of choice in whether to sign an employment arbitration agreement indicates some degree of oppression and procedural unconscionability. (*Armendariz, supra*, 24 Cal.4th at 115.) (See also *Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 492-493. 494 [contracts of adhesion "remain valid and enforceable unless the resisting party can also show that one or more of the contract's terms is substantively unconscionable or otherwise invalid," and "although adhesion alone generally indicates only a low degree of procedural unconscionability, the potential for overreaching in the employment context warrants close scrutiny of the contract's terms." (Emphasis added.)].)

Plaintiff cites other factors relevant to the oppression aspect of procedural unconscionability, including "(1) the amount of time the party is given to consider the proposed contract; (2) the amount

and type of pressure exerted on the party to sign the proposed contract; (3) the length of the proposed contract and the length and complexity of the challenged provision; (4) the education and experience of the party; and (5) whether the party's review of the proposed contract was aided by an attorney. [Citations omitted.]" (*Grand Prospect Partners, L.P. v. Ross Dress for Less, Inc.* (2015) 232 Cal. App. 4th 1332, 1348.) Here, the Arbitration Agreement expressly states the employee has a right to consult with an attorney before signing the document. (Arb. Agmt. ¶ 13.) Moran, a member of the human resources department since 2021, declares that employees are told to read the employment documents carefully, are given as much time as they need to read and sign each document, and are provided a version of the document translated into their native language, in this case Spanish. (Moran Decl. ¶¶ 5, 6.) This evidence is undisputed.

Plaintiff does not argue the Arbitration Agreement was hidden in a form. It is a standalone document and clearly identified as an agreement to arbitrate. Plaintiff argues that the agreement is "legally complex" and difficult to understand without an attorney because it refers to various statutes like the Civil Rights Act of 1964 and the Equal Pay Act. The provisions of paragraphs 1 and 2 of the Arbitration Agreement are unlike those addressed in *OTO*. In *OTO*, the Court characterized the agreement as "a paragon of prolixity, only slightly more than a page long but written in an extremely small font," and agreed with the Court of Appeal's description of the text as " 'visually impenetrable.' " (*OTO, supra*, 8 Cal.5th at 128.) The statutory references in the single-paragraph, densely packed agreement in *OTO* included not merely the descriptive title of the statutes, such as the California Fair Employment and Housing Act and title VII of the Civil Rights Act of 1964, but also parentheticals after the statutes with the specific code sections or public law reference, as well as references to the FAA and CAA "and six different sections of California's Civil Code and Code of Civil Procedure." (*Id.*) Understandably, the Court there concluded that "[a] layperson trying to navigate this block text, printed in tiny font, would not have an easy journey." (*Id.*)

The Court does not find the Arbitration Agreement as a whole or paragraphs 1 and 2 suffer from the problems the Court found in *OTO*. Paragraphs 1 and 2 are not written in the type of legalese present in *OTO*, with detailed legal citations interspersed with text descriptions of statutes. Each of those two paragraphs has a bold face heading informing the employee that one paragraph addresses the claims which are subject to arbitration, and the other addresses claims excluded from arbitration. The provisions of the Arbitration Agreement are not in a single paragraph of block text in minute font, as in *OTO*.

Nevertheless, the Arbitration Agreement is a five-page, single spaced document with 13 numbered paragraphs and additional subparagraphs, some of which are lengthy. The Court finds Plaintiff has shown some degree of procedural unconscionability based on the length and density of the document, the fact the agreement is admittedly a contract of adhesion, and the fact the agreement was made in the employment context where there is inherent economic pressure on an existing employee to agree in order to retain his employment. (*Armendariz, supra*, 24 Cal.4th at 113 [defining contract of adhesion] and 115 ["few employees are in a position to refuse a job because of an arbitration requirement"]; *Alvarez, supra*, 60 Cal.App.5th at 591 [when "arbitration is a condition of employment, there is inherently economic pressure on the employee to accept arbitration," which "alone is a fairly low level of procedural unconscionability."].) The showing of some procedural unconscionability requires scrutiny of the terms of the Arbitration Agreement for substantive

unconscionability. (*Hasty, supra*, 98 Cal.App.5th at 1058.)

### **B. Substantive Unconscionability**

In making the unconscionability determination, "The ultimate issue in every case is whether the terms of the contract are sufficiently unfair, in view of all relevant circumstances, that a court should withhold enforcement." (*Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 911-12.) In general, the arbitration agreement must be so overly harsh, unduly oppressive, and unreasonably favorable to the more powerful party that they undermine the neutrality of the agreement to arbitrate in order to be found substantively unconscionable. (*Sanchez, supra*, 61 Cal.4th at 910-911, 913; *Armendariz, supra*, 24 Cal.4th at 117.) Something more than an employee making a bad bargain is required. (*Pinnacle, supra*, 55 Cal.4th at 246 ["A contract term is not substantively unconscionable when it merely gives one side a greater benefit; rather, the term must be 'so one-sided as to 'shock the conscience.' "].)

#### **1. Unconscionability Based on Scope of Claims and Duration**

The Arbitration Agreement defines the "Company" as "Tawa Supermarket, Inc., Tawa Inc. (Retail), Tawa Retail Group, Inc., Tawa Services, Inc., Welcome Market, Inc., Welcome Services, Inc. and/or any of its related entities, parent companies, subsidiaries, divisions, officers, shareholders, directors, employees, agents, predecessors, successors, and assigns." (Arb. Agmt. introductory paragraph.) The Arbitration Agreement states the parties recognize "differences may arise between me and [the Company] during or following my employment." (Arb. Agmt. introductory paragraph [emphasis added].) The Arbitration Agreement then states that "the Company and I mutually consent to the resolution by arbitration of all claims or causes of action, except as provided in Paragraph 2 below, that the Company may have against me or that I may have against the Company." (Arb. Agmt. ¶ 1 [emphasis added].) Paragraph 1 of the agreement lists a number of types of claims that are subject to arbitration, including breach of contract and tort claims and "claims for violation of any federal, state, or other law, statute, regulation, or ordinance," as examples but without limitation. Paragraph 9 provides the agreement to arbitrate "shall survive the termination of my employment," and that the Arbitration Agreement "can only be revoked or modified by a writing signed by both parties." (Arb. Agmt. ¶ 9.)

Plaintiff contends the scope of claims subject to arbitration under the agreement, and the unlimited duration of the agreement unless and until "both parties" revoke or modify it, make the Arbitration Agreement unconscionable under the decision *Cook v. University of Southern California* (2024) 102 Cal.App.5th 312. Unlike in *Cook*, the language of the Arbitration Agreement at least on its face makes the claims subject to arbitration mutual. (*Compare to Cook, supra*, 102 Cal.App.5th at 317 [where employee and University agreed to "the resolution by arbitration of all claims, whether or not arising out of Employee's University employment, remuneration or termination, that Employee may have against the University or any of its related entities, including but not limited to faculty practice plans, or its or their officers, trustees, administrators, employees or agents, in their capacity as such or otherwise; and all claims that the University may have against Employee"].) However, the scope of the claims covered by the Arbitration Agreement are unlimited and untethered to claims arising out of or related to Plaintiff's employment, just as the scope of claims in the agreement in *Cook* that the Court held was substantively unconscionable. (*Id.* at 321-325.)



The Court in *Cook* also found the virtually unlimited duration of the term of the Arbitration Agreement rendered the agreement unconscionable in that case. (*Id.* at 325-326.) Similar to the agreement in *Cook*, the Arbitration Agreement survives the termination of Plaintiff's employment and "can only be revoked or modified by a writing signed by both parties." (Arb. Agmt. ¶ 9.) The Court in *Cook* upheld the trial court's conclusion that the extended duration of the agreement with similar provisions was substantively unconscionable. (*Id.* at 326 ["We reject the argument that the arbitration agreement is terminable at will after a reasonable time and find the trial court did not err in holding the duration of the arbitration agreement is substantively unconscionable."].)

Citing *Ayala-Ventura v. Superior Court* (2026) 119 Cal.App.5th 241, Defendant argues that the Court should interpret the Arbitration Agreement as only applicable to employment-related claims. In that case, however, the language of the agreement describing the claims subject to arbitration was different; it covered all claims " 'whether or not arising out of [Ayala-Ventura]'s employment or the termination of employment,' " which the company argued meant "if a claim arises out of employment but does not involve termination of employment, it is still covered and vice versa" and that the language was not overbroad because, in light of this language, the agreement's "intended scope is employment-related claims." (*Id.* at 255.) Concluding the agreement language was ambiguous, the Court applied the rule of contract interpretation requiring the Court to construe an ambiguous agreement in a manner that would make it lawful and operative. (*Id.* at 256.)

Defendant, however, does not direct the Court to any language in the Arbitration Agreement in this case that makes the broad sweeping language in any way ambiguous so as to be construed as only applying to employment-related claims. Defendant merely argues that the Arbitration Agreement "is susceptible to the interpretation that it is limited to claims involving the employment relationship" without citing to any provision of agreement that supports the argument. The survival provision several paragraphs subsequent to paragraph 1 cannot reasonably support such a limitation or construction in the face of the clear, unambiguous, and sweeping scope of claims in paragraph 1 of the Arbitration Agreement. (Arb. Agmt. ¶ 9.) Nothing in the introductory paragraph includes any limiting language; to the contrary, it again provides that "both the Company and I are agreeing to resolve any differences between us through the arbitration procedures explained below." (Arb. Agmt. introductory paragraph [emphasis added].) *Ayala-Ventura* is therefore distinguishable. *Cook* governs the Court's interpretation of the Arbitration Agreement in this case.

The sweeping language of the agreement if enforced clearly attempts to compel Plaintiff to arbitrate claims against not only Welcome Market but any individuals associated with that entity no matter when or under what circumstances the claims arise. A tort claim for defamation or a car accident years after termination of Plaintiff's employment that happens to involve an officer, director, employee or "agent" of Welcome Market is within the scope of the Arbitration Agreement based on its broad language. Under the authority of the *Cook* decision, the Arbitration Agreement is substantively unconscionable in two respects, specifically based on the overly broad scope of claims covered and based on the duration of the agreement. (*Cook, supra*, 102 Cal.App.5th at 321-326.)

## 2. Blanket PAGA Waiver

Plaintiff contends the "Class Action Waiver" in the Arbitration Agreement is also substantively unconscionable, as it includes a blanket waiver of Plaintiff's right to bring a PAGA claim which remains

unenforceable as against public policy even after the U.S. Supreme Court's decision in *Viking River*. (*Alberto v. Cambrian Homecare* (2023) 91 Cal. App. 5th 482, 495 ["Both before and after *Viking River Cruises*, blanket waivers of PAGA claims are unconscionable."]; *Adolph v. Uber Technologies, Inc.* (2023) 14 Cal. 5th 1104, 1117 ["In *Iskanian*, we held that a predispute categorical waiver of the right to bring a PAGA action is unenforceable [citation omitted]—a rule that *Viking River* left undisturbed [citation omitted]."].) (See also *Viking River Cruises, Inc. v. Moriano* (2022) 596 U.S. 639, 646, 662-663 ["We hold that the FAA preempts the rule of *Iskanian* insofar as it precludes division of PAGA actions into individual and non-individual claims through an agreement to arbitrate," but the rule of *Iskanian* that a wholesale waiver of PAGA claims is invalid is not preempted].)

Paragraph 5 of the Arbitration Agreement addresses class, collective and representative claims and defines its provisions as the "Class Action Waiver."

**Waiver of Right to Class, Representative and Collective Actions. I**

understand that, by signing this Agreement, both the Company and I are giving up any right we may have to participate in a class, representative or collective action or proceeding, to the fullest extent permitted by applicable law ("Class Action Waiver"). Accordingly, the Company and I may only bring claims against each other in our individual capacities, and neither of us may bring claims against the other as a plaintiff or a member in any purported class, representative or collective action or proceeding, including any private attorney general action, to the fullest extent permitted by law. . . . Notwithstanding any other provision of this Agreement or the applicable arbitration rules, disputes regarding the validity, enforceability or breach of this Class Action Waiver may only be resolved by a civil court of competent jurisdiction and not by an arbitrator. In any case in which (i) the dispute is filed as a class, collective, representative or private attorney general action and (ii) a civil court of competent jurisdiction finds all or part of the Class Action Waiver unenforceable, the class, collective, representative and/or private attorney general action to that extent must be litigated in a civil court of competent jurisdiction but must be stayed pending completion of arbitration for all arbitrable claims, and the portion of the Class Action Waiver that is enforceable shall be enforced. . . . I understand that I will not be retaliated against, disciplined or threatened with discipline as a result of my exercising my rights under Section 7 of the National Labor Relations Act by the filing of or participation in a class, collective or representative action in any forum. However, the Company may lawfully seek enforcement of this Agreement and the Class Action Waiver under the Federal Arbitration Act and seek dismissal of such class, collective or representative actions or claims. The Class Action Waiver shall be severable in any case in which the dispute is filed as an individual action and severance is necessary to ensure that the individual action

proceeds in arbitration.

(Arb. Agmt. ¶ 5 [emphasis added].)

In *Hasty v. American Automobile Assn. etc.* (2023) 98 Cal.App.5th 1041, the Court stated the arbitration agreement requires "the parties to bring their claims 'in an individual capacity', not 'in a private attorney general capacity,' and prohibits class, representative, or private attorney general proceedings." (*Id.* at 1062.) The Court found the provision was one-sided and "can fairly be read to limit only the employee's rights. [Citation omitted.]" (*Id.* at 1062-1063.) "The requirement that an employee's claims be brought solely in an individual capacity and not 'in a private attorney general capacity' precludes the employee from bringing a claim under the [Private Attorney General] Act in arbitration or in court." (*Id.* at 1063.) The language of the Arbitration Agreement quoted above notably waives the employee's right "to participate in" any representative action and to bring claims "as a plaintiff or a member in any . . . representative action or proceeding, including any private attorney general action, and mandates the employee to bring claims in his 'individual' capacity. (Arb. Agmt. ¶ 5.) Under *Hasty*, these provisions in the Arbitration Agreement operate as a blanket waiver by the employee of the right to bring a PAGA action in any forum and as a one-sided provision limiting only the employee's rights. (*Hasty, supra*, 98 Cal.App.5th at 1062-1063.)

Plaintiff anticipated that Welcome Market would argue that the "Class Action Waiver" in this case is not a blanket waiver because it is qualified by the phrase "to the fullest extent permitted by law." (Arb. Agmt. ¶ 4.) Plaintiff argues the addition of that phrase is insufficient to convert the blanket waiver to one that is enforceable, citing *Hasty v. American Automobile Assn. etc.* (2023) 98 Cal.App.5th 1041, 1061-1062. In *Hasty*, the Court rejected the defendant's contention that a confidentiality provision was not unconscionable because "the agreement 'limits the scope of the confidentiality clause to the 'extent permitted by law,' " "explaining "[t]he fact that the provision applies to only the 'extent permitted by law' does not save it because the employee would have no way of knowing what would be covered or not covered by this provision." (*Id.* at 1062.)

The "Class Action Waiver" in this case is framed in broader terms than merely an agreement by Plaintiff not to bring a class or representative action, including specifically a private attorney general act action. The waiver precludes Plaintiff from participating as a member in a class or representative action. The provision clearly requires Plaintiff to waive his right to assert or be involved in any PAGA claims, not only by bringing the claim himself but by being a member represented in a PAGA action brought by another employee or the Labor Workforce Development Agency. Applicable law does not permit such a blanket waiver. Such a blanket waiver was clearly invalid under applicable law when Defendant revised the Arbitration Agreement and presented it for signature to Plaintiff in July 2024, roughly two years after *Viking River* was decided and after multiple decisions published in 2023 continued to reaffirm the bar on blanket waivers of PAGA claims. (Moran Decl. ¶ 6; *Alberto, supra*, 91 Cal. App. 5th at 495; *DeMarinis, supra*, 98 Cal.App.5th at 787.) It is not clear that the employee would know the extent to which the PAGA waiver provision is not permitted by law. The Court agrees under the rationale of *Hasty* that adding "to the fullest extent permitted by law" does not make a clearly unconscionable blanket PAGA waiver which is unenforceable as against public policy conscionable, particularly given the timing of the creation and execution of the Arbitration Agreement in this case.

Notably, the reply does not address these arguments or these authorities. The Court finds the blanket

PAGA waiver is unenforceable and substantively unconscionable.

3. Reply Argument Regarding Plaintiff's "PAGA Claim"

Defendant makes several arguments regarding Plaintiff's "PAGA claim." Defendant argues that the opposition rests on the Court allowing Plaintiff to "'dismiss' his individual PAGA claim," and that Plaintiff cannot "disavow his individual PAGA claim." (Reply pp. 5-7.) The Court has reviewed the operative complaint filed December 3, 2025. There is no PAGA claim alleged in the complaint.

4. Reply Argument Regarding Delegation Clause

Defendant for the first time in its reply argues that the arbitrator should decide disputes regarding the enforceability and interpretation of the Arbitration Agreement. Defendant did not make that argument in its moving papers and assert that a "clear and unmistakable" delegation claim exists in the Arbitration Agreement that precludes the Court from addressing issues of enforcement or interpretation. Defendant only quoted the delegation provision in passing in the "Factual Background" section of the moving memorandum and without any citation to legal authority for the standards for enforcement of such a clause.

Parties may agree to have the arbitrator rather than a court determine the "gateway" issues of arbitrability. (*Aanderud v. Superior Court* (2017) 13 Cal.App.5th 880, 891.) The first requirement for enforcement of a delegation clause is that the delegation clause be "clear and unmistakable." (*Id.* at 891-892.) "[T]he usual presumption is that a court, and not an arbitrator, decides the threshold issues of arbitrability such as whether the arbitration agreement itself is valid and enforceable. [Citation omitted.] ¶ . . . [G]iven the contrary presumption, evidence that the parties intended such a delegation must be 'clear and unmistakable' before a court will enforce a delegation provision. [Citations omitted.] 'This is a "heightened standard," higher than the evidentiary standard applicable to other matters of interpreting an arbitration agreement.' [Citation omitted.]" (*Jack v. Ring LLC* (2023) 91 Cal.App.5th 1186, 1197 [citing among other decisions *Ajamian v. CantorCO2e, L.P.* (2012) 203 Cal.App.4th 771, 781, 790].)

Defendant argues there is a clear and unmistakable delegation clause in the Arbitration Agreement in paragraph 7(c) and that incorporation of the JAMS Rules governing the arbitration make the delegation clause clear and unmistakable. Defendant, however, has not offered any evidence of the JAMS Rules and their content to support this argument. (*Compare to Jack v. Ring, LLC, supra*, 91 Cal.App.5th at 1201.)

Defendant's argument also ignores the contrary provision of paragraph 4 of the Arbitration Agreement quoted above, which expressly carves out from the arbitrator's authority any determination of the validity or enforceability of the Class Action Waiver provisions, such that those disputes "may only be resolved by a civil court of competent jurisdiction and not by an arbitrator." (Arg. Agmt. ¶ 4.)

Defendant impermissibly raised and argued the effect of the delegation clause in its reply for the first time, denying Plaintiff the opportunity to dispute its applicability and enforceability. The Court declines to address this argument raised for the first time in reply. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538 ["[p]oints raised for the first time in a reply brief will ordinarily not be considered, because such consideration would deprive the respondent of an opportunity to counter

the argument.' [Citations omitted.]").)

Further, the Court concludes based on the *Jack v. Ring, LLC* decision that the delegation clause is not clear and unmistakable in light of the provisions of paragraph 4 that provide for the Court to decide the validity or enforceability of the Class Action Waiver, which as defined includes the waiver of representative claims including PAGA claims. The provision in paragraph 4 operates in a manner similar to that in the *Jack v. Ring, LLC* decision, in which the Court found the delegation clause was not clear and unmistakable, stating " 'As a general matter, where one contractual provision indicates that the enforceability of an arbitration provision is to be decided by the arbitrator, but another provision indicates that [a] court might also find provisions in the contract unenforceable, there is no clear and unmistakable delegation of authority to the arbitrator.' [Citation omitted.] 'Even broad arbitration clauses that expressly delegate the enforceability decision to arbitrators may not meet the clear and unmistakable test, where other language in the agreement creates an uncertainty in that regard.' [Citation omitted.]" (*Jack v. Ring, LLC, supra*, 91 Cal.App.5th at 1197.)

### **C. Severability Analysis**

The Arbitration Agreement has a severability provision:

If any provision of this Agreement is found to be unenforceable, in whole or in part, such finding shall not affect the validity of the remainder of this Agreement and this Agreement shall be reformed to the greatest extent possible to ensure that the resolution of all conflicts between the parties are resolved by neutral, binding arbitration. Any finding that this Agreement is unenforceable, in whole or in part, shall have no effect on the enforceability of any other agreement between me and the Company. This Agreement is to be construed as broadly as is permissible under applicable law.

(Arb. Agmt. ¶ 10 [emphasis added].)

The Court is aware of the strong preference for enforcing an arbitration agreement, but that preference gives way when an arbitration agreement is permeated by unconscionability. (*Alberto, supra*, 91 Cal.App.5th at 495.) The California Supreme Court recently provided additional guidance for a trial court's decision regarding severance of unconscionable or unenforceable provisions of an arbitration agreement in *Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478. The Court clarified that (a) "no bright-line rule *requires* a court to refuse enforcement if a contract has more than one unconscionable term," (b) a court is not *required* to sever or restrict an unconscionable term if an agreement has only a single such term, (c) "the appropriate inquiry is qualitative" and considers whether the court can cure the unconscionability by "severance or restriction" or whether augmentation or reformation is required, and (d) "[e]ven if a contract *can* be cured," the court should consider "whether the unconscionability *should* be cured through severance or restriction because the interests of justice would be furthered by such actions. [Citations omitted.]" (*Id.* at 516 [italics in original].) The Court considers whether as to the unconscionable provisions, the "illegality is collateral to the contract's main purpose." (*Id.* at 517.)

The Court considers "the deterrent effect of each option" and should not enforce the arbitration agreement if severance and enforcement "would function to condone an illegal scheme and whether

defects in the agreement indicate the stronger party engaged in a systematic effort to impose arbitration on the weaker party not simply as an alternative to litigation, but to secure a forum that works to the stronger party's advantage. [Citation omitted.]" (*Id.* at 516-517.) "Severance may be properly denied when the agreement contains more than one unconscionable provision, and 'there is no single provision a court can strike or restrict in order to remove the unconscionable taint from the agreement.'" [Citation.]" [Citations omitted.]" (*Cook, supra*, 102 Cal.App.5th at 329.)

The Court finds severance of the unconscionable terms is not appropriate in this case in part because unconscionability permeates the Arbitration Agreement. The two unconscionable provisions go to the heart of the agreement to arbitrate by creating a sweeping and virtually unlimited in time or scope agreement by the Plaintiff to arbitrate any claim he may have against anyone affiliated with Welcome Market as an "agent," employee, shareholder, officer, or director and by compelling Plaintiff to waive bringing or even participating in a PAGA action as a member of a class of aggrieved, represented employees. These provisions are central to the Arbitration Agreement, such that the unconscionability of those provisions is also central to the agreement.

It is also not clear to the Court how severance could be effectuated to extirpate the unconscionable aspects of the agreement without reforming the language of the agreement by adding terms such as ", in light of the broad definition of Company which is a term used throughout the remainder of the agreement, the absence of language that limits the duration of the agreement's application and scope of claims against Welcome Market that would be compelled to arbitration even if the definition of "Company" were limited to Welcome Market itself, and the manner in which the Class Action Waiver paragraph is drafted. The Court finds the interests of justice do not support severance but warrant denial of enforcement of the Arbitration Agreement for unconscionability. (*Ramirez, supra*, 16 Cal.5th at 516-517.)

**8. 9:00 AM CASE NUMBER: C25-03586**  
**CASE NAME: ED PENNING VS. FAIRWAY INDEPENDENT MORTGAGE CORPORATION**  
**HEARING ON DEMURRER TO: COMPLAINT**  
**FILED BY: FAIRWAY INDEPENDENT MORTGAGE CORPORATION**  
**\*TENTATIVE RULING:\***

On the Court's own motion, the hearing on this matter is continued until July 8, 2026. No appearance is required on July 1, 2026.

**9. 9:00 AM CASE NUMBER: MS5031**  
**CASE NAME: PETITION OF: PARAQUAT CASES**  
**\*HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE**  
**FILED RE: KRISTINA F. MOORE**  
**FILED BY: CHEVRON U.S.A. INC**  
**\*TENTATIVE RULING:\***

**Summary**

This Tentative Ruling applies to Lines 9, 10, 11 and 12. Defendants Chevron U.S.A Inc's, Syngenta AG, et. al, and Plaintiffs Collen Clasen and William DeHaven, et. al. have filed Motions and Verified Applications of four attorneys ("Applicants") for *Pro Hac Vice* Admission. These motions are unopposed and are **granted**.

The following attorneys are admitted *pro hac vice* to the State Bar of California for the duration of this case:

Kristina Moore, Esq.  
Tayjes Shah, Esq.  
Jeffrey Travers, Esq.  
Orla O'Callaghan, Esq.

#### Analysis

California Rules of Court (CRC) Rule 9.40 allows this Court to grant a written application for leave to appear as Counsel *Pro Hac Vice* to an applicant who is not a member of the State Bar of California, but who is admitted into and is in good standing with the highest court of any other state.

Upon review of each of the four verified applications, the Court finds that the Applicants have declared facts under penalty of perjury to support the application under CRC Rule 9.40. Specifically, each of the Applicants are in good standing, admitted to the Bar and the highest Court of their state, and are not members of the California State Bar. Each applicant has verified that they are not resident of the State of California, nor does they have regular employment or substantial business in California. Each Applicant has represented to the Court that they not been suspended, disbarred or resigned as counsel. No court has denied his application to be admitted *Pro Hac Vice*.

After considering the moving papers, and applying the relevant law, the Court makes the following findings and orders.

#### Ruling

1. All four Motions for Admission of Counsel Pro Hac Vice are **granted**.
2. The Court will execute the proposed order granting Verified Application of the foregoing attorneys to appear as Counsel *Pro Hac Vice* lodged with the Court on the following dates, with direction to the Clerk of the Court to attach a copy of this ruling to the orders:
  - Proposed Order Granting Application for Admission of Tayjes Shah, Esq., lodged January 6, 2026
  - Proposed Order Granting Application for Admission of Jeffrey Travers, Esq., lodged January 6, 2026.
  - Proposed Order Granting Application for Admission of Orla O'Callaghan, Esq., Lodged January 9, 2026.
3. Counsel for Chevron did not lodge a proposed order granting application for Admission of Kristina Moore. Chevron's counsel is directed to prepare a proposed order conforming to this ruling, attaching a copy of this ruling.
4. No appearance is required at the July 1, 2026 hearing.

**10. 9:00 AM CASE NUMBER: MS5031**

**CASE NAME: PETITION OF: PARAQUAT CASES**

**\*HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE**

**FILED RE: TAYJES SHAH, ESQ.**

**FILED BY: CLASEN, COLLEEN R.**

**\*TENTATIVE RULING:\***

See Line 9

11. 9:00 AM CASE NUMBER: MS5031  
CASE NAME: PETITION OF: PARAQUAT CASES  
\*HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE  
FILED RE: JEFFREY TRAVERS, ESQ.  
FILED BY: CLASEN, COLLEEN R.  
\*TENTATIVE RULING:\*

See Line 9

12. 9:00 AM CASE NUMBER: MS5031  
CASE NAME: PETITION OF: PARAQUAT CASES  
\*HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE  
FILED RE: ORLA O'CALLAGHAN  
FILED BY: SYNGENTA AG  
\*TENTATIVE RULING:\*

See Line 9

13. 9:00 AM CASE NUMBER: MSC19-00771  
CASE NAME: GREG HART VS THOMAS MILWAY  
HEARING IN RE: MOTION TO ALLOW FIRST AMENDED CROSS COMPLAINT  
FILED BY:  
\*TENTATIVE RULING:\*

This hearing on this motion is **vacated**. Moving party withdrew the Motion on June 22, 2026. No appearance is required on July 1, 2026.

14. 9:00 AM CASE NUMBER: MSC20-00441  
CASE NAME: MILZ VS. SILVERA  
\*HEARING ON MOTION IN RE: ATTORNEY'S FEES  
FILED BY: SILVERA, M. MARKETTA  
\*TENTATIVE RULING:\*

**Summary**

Defendants Ronald and Marketta Silvera ("Defendants") unopposed Motion for Attorney's Fees and Costs is **granted** as set forth below. No appearance is required at the hearing on July 1, 2026.

**Background**

Plaintiffs Mark Milz and Milz Development & Construction, Inc. (collectively "Plaintiffs") commenced this action against Defendants Ronald and Marketta Silvera ("Defendants") in March 2020, alleging claims arising from a Residential Purchase Agreement ("Agreement") pursuant to which Plaintiffs purchased Defendants' family home. Defendants sold the property as part of their retirement relocation to Arizona. The Agreement contains an attorney's fees provision in Paragraph 25, which states that in any action arising out of the Agreement, "the prevailing Buyer or Seller shall be entitled to reasonable attorney fees and costs from the non-prevailing Buyer or Seller, except as provided in paragraph 22A." Paragraph 22A requires mediation prior to commencing any action and bars recovery of fees by a party who fails to participate in such mediation.



Plaintiffs filed their complaint without first demanding mediation, though the parties subsequently engaged in unsuccessful mediation. Following extensive litigation, Defendants prevailed on their motion for summary judgment, with this Court ruling in favor of Defendants on all causes of action. The matter is now before the Court on Defendants' motion for attorney's fees and costs pursuant to California Civil Code section 1717. Plaintiffs failed to file a timely opposition to the instant motion.

### **Analyses**

Under California Civil Code § 1717, when a contract contains a provision for attorney's fees, the prevailing party in an action arising out of that contract shall be entitled to recover reasonable attorney's fees incurred in the prosecution or defense of the action. A defendant becomes a prevailing party by obtaining a "simple, unqualified victory"—completely prevailing on or defeating all contract claims in the action. See *Scott Co. of Calif. v. Blount, Inc.* (1999) 20 Cal. 4th 1103, 1109. Where a fee provision uses "arising out of" language, attorney fees are awardable on both contract and tort claims that arise out of the contract. *Santisas v. Goodin* (1998) 17 Cal. 4th 599, 608

#### **A. Plaintiffs' Failure to Oppose Constitutes Consent to the Motion**

California Rules of Court, Rule 8.54(c), provides that "[a] failure to oppose a motion may be deemed a consent to the granting of the motion." See *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257. *Gwaduri v. I.N.S.*, 362 F.3d 1144, 1146 (9th Cir. 2004) (failure to file timely opposition is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified"); *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) (party who fails to file opposition waives opposition and may not be heard to complain); *Nazir v. United Airlines, Inc.* (2009) 178 Cal. App. 4th 243, 288 (failure to address or oppose issue in motion constitutes waiver); *Badie v. Bank of America* (1998) 67 Cal. App. 4th 779, 784–785 (failure to support point with reasoned argument and citations constitutes waiver).

Local rules of this Court reinforce this principle. See *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition "creates an inference that the motion or demurrer is meritorious"); *Herzberg v. County of Plumas* (2005), 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of issues). Furthermore, "[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements." Contra Costa County Superior Court Local Rules.

Here, Plaintiffs' failure to timely oppose Defendants' Motion for Attorneys' Fees and Costs is deemed consent to the granting of the motion. The Court therefore consider the motion on the merits based upon Defendants' uncontested showing.

#### **B. Defendants Are the Prevailing Parties**

Defendants are prevailing parties entitled to attorney's fees under Civil Code section 1717(b)(1). This Court granted Defendants' motion for summary judgment, ruling against Plaintiffs on all causes of action and thereby defeating all contract claims in the action. Under *Scott Co. of Calif. v. Blount, Inc.*, (1999) 20 Cal. 4th 1103, 1109, such an unqualified victory entitles the successful party to recover reasonable attorney's fees incurred in defense of those claims. The fact that Plaintiffs pleaded tort claims in addition to contract claims does not alter this result. Where, as here, a prevailing party clause uses "arising out of" language, attorney fees are awardable on tort claims that "arise out of" the contract. *Santisas v. Goodin* (1998) 17 Cal. 4th 599, 608.

### C. Paragraph 22A Does Not Bar Recovery

Paragraph 22A of the Agreement does not bar Defendants' recovery of attorney's fees. That provision would have barred Plaintiffs from recovering fees had they prevailed, because they filed the complaint without first demanding mediation. However, Paragraph 22A imposes no bar upon Defendants, who were denied the contractual right to mediate prior to being forced to defend this lawsuit. The mediation prerequisite applies to the party who institutes litigation without compliance, not to the defending party who was subjected to suit without the benefit of the contractual dispute resolution mechanism.

### D. The Requested Fees and Costs Are Reasonable

The Court finds that the reasonable market value of attorney services is the proper measure of a reasonable hourly rate. *Nemecek & Cole v. Horn* (2012) 208 Cal. App. 4th 641, 651. The record submitted by Defendants establishes that the hourly rates charged by Counsel are reasonable and consistent with market rates in the Bay Area. Counsel Robert Ward, a practitioner with 32 years of experience, bills at a rate below the 90th percentile for comparable firms in the region. Courts routinely apply market rates to fee awards based upon evidence of counsel's experience and comparable billing rates. *Syers Properties III, Inc. v. Rankin* (2014) 226 Cal. App. 4th 691, 700; *Horsford v. Board of Trustees of Calif. State Univ.* (2005) 132 Cal. App. 4th 359, 395–397

The amount of work performed is likewise reasonable and well-documented. Mr. Ward expended less than 50 hours on this case over a six-month period, which is surprisingly low for litigation pending since March 2020. The work focused on preparing for and taking Plaintiff Milz's deposition and drafting the summary judgment motion, which relied upon admissions obtained during that deposition. Paralegal services were necessary and reasonable for deposition and summary judgment preparation. Courts may accept counsel's computation of hours reasonably spent. *Syers*, *supra*, 226 Cal. App. 4th at 700. The Court finds that the fee request reflects efficient defense of the action.

Defendants have paid or incurred \$54,367.50 in fees and \$2,627.57 in costs. Additional fees of \$3,325 for reply brief preparation and hearing attendance are properly included in the award. Based upon the foregoing, the Court hereby finds and orders as follows:

### Ruling

1. Defendants' Motion for Attorneys' Fees and Costs is **granted**;
2. Plaintiffs shall pay Defendants attorney's fees in the amount of \$57,692.50 and costs in the amount of \$2,627.57, for a total award of \$60,320.07, no later than thirty (30) days from the date of entry of this order;
3. The Court will execute the proposed order lodged on June 25, 2026, and direct the Clerk of the Court to attach this ruling thereto; and
4. No appearance is required at the hearing scheduled for July 1, 2026.

**15. 9:00 AM CASE NUMBER: N25-2020**

**CASE NAME: PETITION OF:ALAN KAPLAN**

**\*HEARING ON MOTION IN RE: VACATE DISMISSAL, AND FOR ORDER REFORMING RELEASE OF MECHANIC'S LIEN**

**FILED BY: KAPLAN, ALAN**

**\*TENTATIVE RULING:\***

**Summary**

1. Petitioner Allan Kaplan as Trustee of the Ehrhardt Trust II's ("Petitioner") Motion for Order Vacating Dismissal and Reforming Release of Mechanic's Lien is unopposed and is **granted**.
2. The Court will execute the proposed order lodged on March 16, 2026.
3. No appearance is required at the hearing on July 1, 2026.

**Discovery Law & Motion**

**16. 9:01 AM CASE NUMBER: C23-03128**

**CASE NAME: JAIME PEREZ VS. DOES 1 TO 50, INCLUSIVE**

**\*HEARING ON MOTION FOR DISCOVERY COMPEL COMPLIANCE OF NONPARTY W/ DEPO  
SUBPOENA**

**FILED BY: AUTOZONE PARTS, INC.**

**\*TENTATIVE RULING:\***

The hearing on this Motion is **vacated**. All discovery motions are referred to a Discovery Referee. See Case Management Order No. 1. No appearance is required on July 1, 2026.

**Courtroom Clerk's Session**

**Add On**

**17. 1:30 PM CASE NUMBER: N25-2304**

**CASE NAME: RAJ CHABRA VS. MOHAMMAD AMIRY**

**HEARING IN RE: CLAIM OF RIGHT TO POSSESSION**

**FILED BY:**

**\*TENTATIVE RULING:\***

**Summary**

Interested Party Abida Ataye ("Ataye") filed a Claim of Right to Possession and Notice of Hearing on June 18, 2026. The hearing for this Claim is scheduled for 1:30 p.m. on July 1, 2026.

The Court takes judicial notice of the Register of Actions and finds that Notice of Entry of Judgment, including a judgment of possession, has been entered on behalf of Plaintiffs Raj and Nina Chabra on January 20, 2026. The Clerk of the Court issued a Writ of Possession After Hearing on May 20, 2026. The Court is informed that the Sheriff's Office has executed the Writ of Possession.

This Court possesses insufficient information that evidences Ataye's interest in the subject premises located at 3503 Clayton Rd., Concord, CA 94519. Accordingly, Ataye's claim is **denied**.